

for that situation (and the declaration also failed to provide foundational evidence as to the rate of the posted speed limit or what rate of speed LERAN was traveling in the moments before the subject accident occurred).

Furthermore, speed is only one possible basis for breach of a driver's duty. For example, it does not negate the possibility of driver inattentiveness on the part of LERAN, who presented no evidence as to attentiveness.

Since this motion failed to negate a necessary element of either of the causes of action alleged in the complaint, nor to establish a complete affirmative defense to them, the court denies the summary judgment motion filed by LERAN and SHI BAI.

E. ROE v. ALTERNATIVE FAMILY SERVICES, et al.
Case No. CU24-08890

Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Minor's Compromise is approved in part, and denied in part. All components of the proposal are acceptable and approved with the exception of the request for Plaintiff attorney fees.

Plaintiff counsel has requested an allocation of 40% of the gross settlement amount for its fees in this matter. This is not justified by the work required by the case and far exceeds the customary fee of 25% that is almost always apportioned for legal representation of minors. Therefore, the court denies this portion of the minors compromise request. It may be modified to reflect an allocation for plaintiff attorney fees of not more than 28%, at which time the court will approve the document in its entirety.

ANATOLIY LEBEDINSKIY v. PATRICK JOHN BOAL and JUAN MORALES PEREZ
Case No. CU25-00920

BOAL's Motion for Leave to File Cross-Complaint

TENTATIVE RULING

Defendant PATRICK JOHN BOAL ("BOAL") moves for leave to file a cross-complaint against Plaintiff ANATOLIY LEBEDINSKIY.

Code of Civil Procedure section 428.10, subdivision (a) permits a party against whom a cause of action has been asserted in a complaint to file a cross-complaint against the initially complaining parties. Code of Civil Procedure section 428.50 allows a cross-complaint against an initially complaining party to be filed after the cross-complaining party has answered the initial complaint only if the cross-complaining party obtains leave of court. BOAL has answered Plaintiff's complaint against him and thus needs leave of court to file a cross-complaint against Plaintiff.

Where a proposed cross-complaint against an initial party is "compulsory," meaning that it is asserted against the initial party and arises out of the same series of transactions or occurrences as the initial party's complaint and therefore must be filed lest the would-be cross-complainant lose his right to assert his claims, leave to file the cross-complaint "shall" be granted "upon such terms as may be just to the parties" if the would-be cross-complainant has "acted in good faith." (Code Civ. Proc., §§ 426.10, 426.30, 426.50.)

A "permissive" cross-complaint, on the other hand, is one against a new party or one where the proposed claims do not relate to the same series of events as the initial party's complaint, and is given leave for filing only in the court's discretion. (Code Civ. Proc., § 428.50, subd. (c) ["interests of justice" standard]; *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.)

BOAL's proposed cross-complaint relates to the same transactions or occurrences as Plaintiff's complaint. BOAL alleges claims for indemnity and contribution related to the same motor vehicle collision underlying Plaintiff's complaint. Challenges to the legal sufficiency of a proposed cross-complaint's claims are matters for demurrer, not the motion for leave, which shall be granted absent bad faith. Plaintiff does not demonstrate bad faith on BOAL's part in seeking leave.

BOAL's motion for leave to file a cross-complaint is granted.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

Meeting ID: 160 221 0102

Passcode: 650928

One tap mobile

+16692545252,,1602210102#,,,*650928# US (San Jose)

+16692161590,,1602210102#,,,*650928# US (San Jose)